

**Before the
Federal Maritime Commission**

Docket No. 24-17

Samsung Electronics America, Inc.
v.
Orient Overseas Container Line, Limited,
and OOCL (Europe) Ltd.
v.
Samsung Electronics Company, Ltd.

DECLARATION OF STACEY NORMINGTON

Stacey Normington, hereby declare under penalty of perjury pursuant to 28 U.S.C. 1746 as follows:

1. I am employed by Cozen O'Connor, P.C. as a Senior Regulatory Specialist.
2. I have personal knowledge of the facts set forth herein and, if sworn as a witness, could competently testify thereto.
3. Attached hereto as Exhibit A is a true and accurate copy of a list of lawsuits, compiled by our research librarian, in which Samsung Electronics Company, Ltd. ("Samsung") has been named as a defendant.
4. Attached hereto as Exhibit B is a true and accurate copy of a list of lawsuits, compiled by our research librarian, in which Samsung is a plaintiff.
5. I reviewed the docket sheets that were available on PACER for the cases listed on Exhibit A and noted that service under the Hague Convention was waived by Samsung in 116 of those cases. This was typically done in an unopposed motion filed by Samsung which requested an extension of time to answer and stated that Samsung agreed to waive service under the Hague

Convention in exchange for the requested extension. A true and accurate copy of one such motion, downloaded from the docket in *Phenix Longhorn LLC v. Samsung Electronics Co., Ltd.* 24-cv-01077 (E.D.TX), is attached hereto as Exhibit C.

6. The matters in which Samsung specifically waived service under the Hague Convention, based on my review of the dockets for those cases listed on Exhibit A, are set forth below:

2:24-cv-01077
2:24-cv-01073
2:24-cv-01070
1:24-cv-01561
2:24-cv-01057
2:24-cv-01051
2:24-cv-01048
2:22-cv-00469
2:24-cv-00966
2:24-cv-00920
2:24-cv-00910
2:24-cv-00854
2:24-cv-00828
2:24-cv-00819
2:24-cv-00765
2:24-cv-00746
4:24-cv-00798
2:24-cv-00069
2:24-cv-00634
2:24-cv-00627
2:24-cv-00610
2:24-cv-00568
2:24-cv-00544
2:24-cv-00540
2:24-cv-00532
4:24-cv-00624
4:24-cv-00540
2:24-cv-00484
2:24-cv-00435
2:24-cv-00429
2:24-cv-00408
2:24-cv-00372
2:24-cv-00291
2:24-cv-00284

2:24-cv-00228
2:24-cv-00203
2:24-cv-00199
2:24-cv-00140
2:24-cv-00133
1:24-cv-00170
2:24-cv-00106
2:24-cv-00105
2:24-cv-00049
2:24-cv-00047
2:24-cv-00034
2:23-cv-00643
2:23-cv-00587
2:23-cv-00495
4:23-cv-00927
2:23-cv-00485
2:23-cv-00482
2:23-cv-00427
5:23-cv-00092
2:23-cv-00363
2:23-cv-00324
2:23-cv-00322
2:23-cv-00319
2:23-cv-00285
2:23-cv-00221
3:23-cv-00302
2:23-cv-00160
2:23-cv-00155
2:23-cv-00141
2:23-cv-00103
2:23-cv-00083
1:23-cv-00210
2:23-cv-00061
2:23-cv-00054
2:23-cv-00031
2:23-cv-00001
2:22-cv-00467
2:22-cv-00462
2:22-cv-00423
2:22-cv-00422
2:22-cv-06186
2:22-cv-00401
2:22-cv-00398
2:22-cv-00367
2:22-cv-00353
2:22-cv-00354

2:22-cv-00352
2:22-cv-00344
5:22-cv-04825
2:22-cv-00320
2:22-cv-00290
5:22-cv-01244
2:22-cv-00263
2:22-cv-00240
2:22-cv-00233
5:22-cv-00073
2:22-cv-00141
2:22-cv-00114
2:22-cv-00107
2:22-cv-00100
6:22-cv-00328
2:22-cv-00078
2:21-cv-00463
2:21-cv-00446
2:21-cv-00413
6:21-cv-00955
4:21-cv-00622
6:21-cv-00793
2:21-cv-00290
2:21-cv-00238
6:21-cv-00626
2:21-cv-00187
2:21-cv-00188
2:21-cv-00186
2:21-cv-00139
6:21-cv-00227
6:21-cv-00169
2:21-cv-00041
2:21-cv-00033
2:21-cv-00027
2:21-cv-00025
2:20-cv-00380

7. During my review of the dockets listed in Exhibit A, I did not locate any case in which Samsung moved for dismissal based upon a plaintiff's failure to utilize the Hague Convention for service of a summons and complaint.

8. A true and accurate copy of the Answer and Counterclaim filed by Samsung in *VB Assets, LLC v. Samsung Electronics Co., Ltd., et al.* C.A. No. 2:24-cv-828 (E.D. TX), which I downloaded from the docket for that case, is attached hereto as Exhibit D.

9. A true and accurate copy of the Order on Mot. to Quash and Dismiss (June 21, 2016) in *In Re: Taotoa USA Inc., et al.* is attached hereto as Exhibit E.

I declare under penalty of perjury of the laws of the United States of America that the foregoing is true and correct to the best of my knowledge.



Stacey E. Normington

Dated: February 13, 2025

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